Fiscal Impact Statement

Legislative Council Staff

Nonpartisan Services for Colorado's Legislature

AMENDMENT 83: CONSTITUTIONAL RIGHT TO HUNT AND FISH

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Summary Information

Overview. The measure establishes the right to hunt and fish in the Colorado Constitution.

Types of impacts. The measure is projected to affect the following areas:

- Minimal State Workload

Disclaimer. This fiscal impact statement has been prepared for a statewide ballot measure appearing at the 2026 statewide election. Any appropriations required to implement this measure will be addressed through the annual or supplemental budget process if this measure is approved by voters. For more information about this measure, please see the ballot information booklet.

Table 1
State Fiscal Impacts

Type of Impact	Current Year FY 2026-27	Budget Year FY 2027-28
State Revenue	$0	$0
State Expenditures	$0	$0
Transferred Funds	$0	$0
Change in TABOR Refunds	$0	$0
Change in State FTE	0.0 FTE	0.0 FTE

Amendment 83

Summary of Measure

The measure establishes the constitutional right to hunt and fish using traditional methods. The right applies to all species except for nongame, endangered, or species that are illegal to hunt under federal law. The measure does not limit the ability of a state agency or the General Assembly to regulate hunting, fishing, and wildlife management so long as it is necessary for sound scientific wildlife conservation and management, public safety, or to preserve the future of hunting and fishing. Additionally, the measure does not establish the right to trespass on private property.

Background

Colorado Parks and Wildlife (CPW) in the Department of Natural Resources (DNR) is tasked with the management and regulation of wildlife in Colorado. The Colorado Parks and Wildlife Commission is a citizen board, appointed by the Governor, that sets regulations and policies for wildlife management. Policies set by the Commission are implemented and enforced by CPW.

State Revenue and Expenditures

The measure is not expected to increase or decrease near-term state revenue or expenditures. CPW, in coordination with the Parks and Wildlife Commission, will continue to set rules and regulations around hunting and fishing that can be implemented and enforced. CPW may see some increased workload to seek legal advice from the Department of Law on how to appropriately apply the measure's language when developing new rules and regulations.

If CPW sees an increase in parties challenging rules and regulations based on the new constitutional language, expenditures will increase for litigation costs.

Effective Date

If approved by voters at the 2026 general election, this measure takes effect upon proclamation of the Governor, no later than 30 days after the official canvass of the vote is completed.

State and Local Government Contacts

Natural Resources	Law